

**Subject Qualification:** Degree of LL.M, School of Law  
**Session:** 2017/18  
**Examination Title:** Contemporary Issues in Intellectual  
Property Law

**Course Code:** LAW5011\_1  
**Date:** 26 April 2018  
**Time:** 09.30 – 12.30

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**Instructions:**

Please answer **3** of the following 8 questions. Each question/answer is worth one-third of the final mark.

*You may take UNANNOTATED copies of collections of statutory material and international agreements, or unannotated printed copies of such material into the examination.*

*Students whose native language is not English will be allowed to bring with them an English-[Foreign Language]/[Foreign Language]-English dictionary in hard copy only. Any materials permitted in examinations may be highlighted or underlined, but not otherwise annotated. Dictionaries and treaty compendiums may not contain any notations or inserts. The use of indexing by un-annotated post-it notes is permitted. All documents may be examined by an invigilator to ensure that there are no notations or additional, un-authorised documents. Where students are found with a document other than as described or where documents brought into the exam are annotated in any way—whether before or during the exam—appropriate disciplinary measures will be taken.*

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**CONTINUED OVERLEAF**

1. Critically evaluate the measures taken by the UK government since the Hargreaves Review (2011) to improve the enforcement of IP rights in the UK.
2. The new right for press publishers provided under Article 11 of the proposed Directive on Copyright in the Digital Single Market (COM(2016) 593 final) grants exclusive rights to “reproduction” and “making available to the public” for the “digital use” of “press publications” for a period of 20 years from publication. Will the proposal lead to new revenues and (in the words of Commissioner Oettinger) “stabilise the online value chain for news publishers”?
3. In the debate about the proposed EU Directive on Copyright in the Digital Single Market (COM(2016) 593 final), Julia Reda MEP has argued that an obligation on online service providers to install upload filters (as foreseen by Article 13) would create “censorship machines”. Do you agree or disagree with this statement, and for what reasons?
4. In their study of reasons for consumer “piracy” of copyright works (2014), Watson, Zizzo and Fleming show that the empirical evidence is heavily skewed toward music consumption. Would greater knowledge about industry sectors such as video games and software affect the appropriate enforcement policy?
5. Acting as counsel for the BBC, who lost the rights to broadcast The Great British Bake Off to a rival channel, would you have been able to prevent this programme transfer from going ahead, given that there is no specific TV format right in the UK?
6. The introduction of a small claims track within the Intellectual Property Enterprise Court (2012) aimed to address concerns about the enforcement of low value IP claims in the UK. Discuss these concerns, and how they may be met.
7. Under EU Law, an exception for private copying needs to be offset by a payment of fair compensation to the rightholders, based on an assessment of harm. In *British Academy of Songwriters, Composers and Authors v Secretary of State for Business, Innovation and Skills* [2015] Mr Justice Green suggested that member states do not have to assess harm as a lost licensing opportunity (the “licensing test”). Rather they act lawfully in adopting a more limited concept of “lost sales”. Discuss with reference to CJEU case law and European Commission policy.
8. A video game clone is a game that looks like, and plays in a similar manner to a previous popular game. How is the games sector facing the issue of cloning? Some have argued that it is difficult to establish a clear cause of action and that a legal solution may even be counter-productive. Discuss in the light of the literature on intellectual property’s “negative space”.

**END OF QUESTION PAPER**